

House File 471

H-1165

1 Amend House File 471 as follows:

2 1. Page 1, after line 9 by inserting:

3 <Sec. _____. Section 280.13C, subsection 4, paragraph b, Code
4 2025, is amended to read as follows:

5 ~~b. For school years beginning on or after July 1, 2018,~~
6 ~~each~~ Each school district and nonpublic school shall provide
7 to the parent or guardian of each student in grades seven
8 through twelve ~~a~~ the most recent version of the concussion and
9 brain injury information sheet, as provided by the department
10 of health and human services, ~~the Iowa high school athletic~~
11 ~~association, and the Iowa girls high school athletic union~~
12 pursuant to subsection 7A. The student and the student's parent
13 or guardian shall sign and return a copy of the concussion
14 and brain injury information sheet to the student's school
15 prior to the student's participation in any extracurricular
16 interscholastic activity.

17 Sec. _____. Section 280.13C, subsection 6, paragraphs a and b,
18 Code 2025, are amended to read as follows:

19 a. (1) The department of health and human services, in
20 cooperation with the Iowa high school athletic association
21 and the Iowa girls high school athletic union, shall develop
22 a return-to-play protocol based on peer-reviewed scientific
23 evidence consistent with the guidelines of the centers for
24 disease control and prevention of the United States department
25 of health and human services, for a student's return to
26 participation in any extracurricular interscholastic activity
27 after showing signs, symptoms, or behaviors consistent with a
28 concussion or brain injury.

29 (2) The department of health and human services shall adopt
30 the return-to-play protocol by rule pursuant to chapter 17A
31 and shall review and update the return-to-play protocol, and
32 the rules implementing the return-to-play protocol, pursuant
33 to subsection 7A.

34 (3) The board of directors of each school district and
35 the authorities in charge of each accredited nonpublic school

1 with enrolled students who participate in an extracurricular
2 interscholastic activity which is a contest in grades seven
3 through twelve shall adopt ~~such protocol by July 1, 2019 the~~
4 most recent version of the return-to-play protocol adopted
5 by the department of health and human services pursuant to
6 subparagraph (2).

7 ~~b. (1) Personnel of a school district or accredited~~
8 ~~nonpublic school with enrolled students who participate in an~~
9 ~~extracurricular interscholastic activity which is a contest~~
10 ~~in grades seven through twelve~~ The department of health
11 and human services, in consultation with the department of
12 inspections, appeals, and licensing, the Iowa high school
13 athletic association, and the Iowa girls high school athletic
14 union, shall develop a return-to-learn plan based on guidance
15 developed by the brain injury association of America in
16 ~~cooperation with a student removed from participation in~~
17 ~~an extracurricular interscholastic activity and diagnosed~~
18 ~~with a concussion or brain injury, the student's parent or~~
19 ~~guardian, and the student's licensed health care provider to~~
20 ~~accommodate the student~~ students removed from participation in
21 an extracurricular interscholastic activity and diagnosed with
22 a concussion or brain injury as the student returns students
23 return to the classroom.

24 (2) The department of health and human services shall adopt
25 the return-to-learn plan by rule pursuant to chapter 17A and
26 shall review and update the return-to-learn plan, and the rules
27 implementing the return-to-learn plan, pursuant to subsection
28 7A.

29 (3) The board of directors of each school district and
30 the authorities in charge of each accredited nonpublic school
31 with enrolled students who participate in an extracurricular
32 interscholastic activity which is a contest in grades seven
33 through twelve shall adopt the most recent version of the
34 return-to-learn plan adopted by the department of health and
35 human services pursuant to subparagraph (2).

1 Sec. _____. Section 280.13C, Code 2025, is amended by adding
2 the following new subsection:

3 NEW SUBSECTION. 7A. *Review and update.* At least once every
4 four years, the department of health and human services, in
5 consultation with the department of inspections, appeals, and
6 licensing, the Iowa high school athletic association, and the
7 Iowa girls high school athletic union, shall review and update
8 all of the following:

9 *a.* The information sheet described in subsection 4,
10 paragraph “b”.

11 *b.* Any standards that the department of health and human
12 services has adopted under subsection 5 related to the
13 removal of a student from participation in an extracurricular
14 interscholastic activity.

15 *c.* The return-to-play protocol described in subsection 6,
16 paragraph “a”, and the rules implementing the return-to-play
17 protocol.

18 *d.* The return-to-learn plan described in subsection 6,
19 paragraph “b”, and the rules implementing the return-to-learn
20 plan.>

21 2. By renumbering as necessary.

NORDMAN of Dallas